

7 & 8 ELIZ. 2

No. 3

A MEASURE passed by the National Assembly of the Church of England

To transfer the dignity and status of the Cathedral of the Diocese of Guildford from the Church of the Holy Trinity in Guildford to the Church of the Holy Spirit in Guildford, to constitute a Dean and Chapter of the Cathedral Church, to make provision for the government of the Cathedral Church and for purposes connected therewith. [25th March, 1959]

Transfer of cathedral status and dignity.

1.—(1) The cathedral church of the Holy Trinity in the borough and diocese of Guildford shall cease to be the cathedral church of the said diocese, and the church of the Holy Spirit in the said borough and diocese shall become and be the cathedral church of the said diocese.

(2) Sections three and four of the Archdeaconry of Surrey Measure, 1930, and any schemes relating to the cathedral church of Guildford made under the said section four shall have effect as if for references therein to the cathedral church of Guildford there were substituted references to the cathedral church of the Holy Spirit, Guildford.

(3) Section seven of the Diocese of Winchester (Division) Measure, 1923, and the Order of His late Majesty King George the Fifth in Council made thereunder and dated the twenty-second day of April, 1927, shall cease to have effect so far as that section and that Order relate to the cathedral church of Guildford.

(4) The Scheme made under the Cathedral Measures, 1931 and 1934, and confirmed by an Order of His former Majesty King Edward the Eighth in Council dated the twenty-eighth day of May, 1936, containing the Constitution and Statutes for the government of the cathedral church of the Holy Trinity shall cease to have effect.

Constitution of dean and chapter and appointment of dean.

2.—(1) There shall be a dean and chapter of the cathedral church which shall be known as "the dean and chapter of the cathedral church of the Holy Spirit, Guildford".

(2) Such person as Her Majesty appoints shall be dean of the cathedral church.

(3) Any reference to the cathedral chapter of the cathedral church of the Holy Spirit, Guildford, or to the cathedral council of the cathedral church of the Holy Spirit, Guildford, in any legal instrument shall be deemed to be a reference to the dean and chapter of the cathedral church.

3.—(1) That area which is designated in an instrument in writing executed by the bishop on the fifth day of December, 1958, and deposited in the registry of the diocese of Guildford and which was before the coming into operation of this section vested as to part in the diocesan board of finance of the diocese of Guildford and as to part in the Guildford New Cathedral Fund shall without further assurance be transferred to and vested in the dean and chapter.

Designation and vesting of precincts of cathedral church.

(2) The area specified in the preceding subsection shall cease to be part of any parish or ecclesiastical district in which it was included before the coming into operation of this section and shall be the area of the cathedral church and its precincts and subject to the provisions of any Scheme made in pursuance of the Cathedral Measures, 1931 and 1934, shall be subject to such ecclesiastical jurisdiction as that to which the area of cathedral churches and their precincts are commonly subject.

4. Subject to any express condition to the contrary under which the property is held any property which before the coming into operation of this section was vested in the cathedral chapter of the cathedral church of the Holy Trinity is hereby without further assurance transferred and vested in the following manner, that is to say:—

Vesting of property previously held by the cathedral chapter of the cathedral church of the Holy Trinity.

- (a) Such property, if any, as is commonly vested in the incumbent of a benefice shall be transferred to and vested in the incumbent of the benefice of Holy Trinity with St. Mary and St. Luke, Guildford;
- (b) Such property if any as is commonly vested in the churchwardens of a parish shall be transferred to and vested in the churchwardens of the parish of Holy Trinity with St. Mary and St. Luke, Guildford;
- (c) All other such property shall be transferred to the parochial church council of the parish of Holy Trinity with St. Mary and St. Luke, Guildford, and shall vest either in such parochial church council or in the diocesan board of finance of the diocese of Guildford in accordance with the provisions of section six of the Parochial Church Councils (Powers) Measure, 1956.

5. The person who is the incumbent of the benefice of Holy Trinity with St. Mary and St. Luke, Guildford may by an instrument in writing given or sent to the bishop resign the dignity of provost, without prejudice to his status or rights as incumbent

Resignation of provost.

of the said benefice, but a resignation under the provisions of this section shall not have effect until the execution of the instrument referred to in section eight of this Measure.

Consenting
body.

6.—(1) The Second Schedule to the Cathedrals Measure, 1931, as modified by section two of the Guildford Cathedral Measure, 1938, shall have effect with the omission of Guildford and the cathedral church of the Holy Spirit, Guildford, from the cathedral churches referred to therein.

(2) The dean and chapter shall be the consenting body for the purposes of the Cathedral Measures, 1931 and 1934.

Scheme
under the
Cathedral
Measures,
1931 and
1934.

7.—(1) As soon as may be after the passing of this Measure the Commission appointed by the Church Assembly at the Spring Session, 1958, in pursuance of section seventeen of the Cathedrals Measure, 1931, and section two of the Guildford Cathedral Measure, 1938, shall submit to Her Majesty in Council a scheme under the Cathedral Measures, 1931 and 1934, containing a Constitution and Statutes for the cathedral church in conformity with the provisions of this Measure.

(2) A scheme under the said Measures as extended by this section shall provide that those persons who, immediately before the coming into operation of such scheme were residentiary or honorary canons in the cathedral church of the Holy Trinity shall be the first residentiary or honorary canons as the case may be in the cathedral church.

(3) A Scheme under the said Measures as extended by this section may provide for the constitution of a college of lay canons, the rights and duties of lay canons, joint meetings of the dean and chapter and the college of lay canons and matters incidental thereto.

(4) For the removal of doubt it is hereby declared that section two of the Guildford Cathedral Measure, 1938, was effective to apply the Cathedral Measures, 1931 and 1934, to the cathedral church as if it were a cathedral church to which the Cathedrals Measure, 1931, was applied by section twenty-nine of that Measure.

Commence-
ment.

8.—(1) As soon as the following conditions have been fulfilled, that is to say:—

- (i) the church of the Holy Spirit or a part thereof has been consecrated;
- (ii) notice of the confirmation by Order in Council of the scheme referred to in section seven of this Measure has appeared in the London Gazette in pursuance of paragraph (v) of subsection (1) of section six of the Cathedrals Measure, 1931;

- (iii) the office of provost is vacant or an instrument in writing in accordance with the provisions of section five of this Measure has been given or sent to the bishop;

the bishop shall certify the same by an instrument under his hand and seal.

(2) The said instrument when executed shall be deposited in the registry of the diocese of Guildford and shall there remain unless and until the bishop with the consent of the dean and chapter shall make other provision for its safe custody.

(3) Sections five, seven, eight, nine and eleven of this Measure shall come into operation immediately on the passing of this Measure, and save as aforesaid this Measure and the Scheme referred to in section seven of this Measure shall come into operation immediately upon the execution of the instrument referred to in the preceding subsections of this section.

9. In this Measure the following expressions have the meanings respectively assigned to them:— Interpretation.

“ the bishop ” means the Bishop of Guildford;

“ the cathedral church ” means the cathedral church of the Holy Spirit, Guildford, save when the context otherwise requires;

“ the cathedral church of the Holy Trinity ” means the cathedral church of the Holy and Undivided Trinity, Guildford, designated the cathedral church of Guildford by an Order of His late Majesty King George the Fifth in Council made under section seven of the Diocese of Winchester (Division) Measure, 1923, and dated the twenty-second day of April, 1927;

“ the provost ” means the provost of the Cathedral Church of the Holy Trinity.

10. The Guildford Cathedral Measure, 1938, is hereby repealed. Repeal.

11. This Measure may be cited as the Guildford Cathedral Short title. Measure, 1959.

Table of Enactments referred to in this Measure

Short Title	Session and Chapter
Diocese of Winchester (Division) Measure, 1923	14 & 15 Geo. 5. No. 6.
Archdeaconry of Surrey Measure, 1930 ...	20 & 21 Geo. 5. No. 2.
Cathedrals Measure, 1931	21 & 22 Geo. 5. No. 7.
Cathedrals (Amendment) Measure, 1934 ...	24 & 25 Geo. 5. No. 3.
Guildford Cathedral Measure, 1938 ...	1 & 2 Geo. 6. No. 2.
Parochial Church Councils (Powers) Measure, 1956	4 & 5 Eliz. 2. No. 3.

